

An Act

ENROLLED SENATE
BILL NO. 1491

By: Paxton of the Senate

and

Hilbert of the House

An Act relating to Presidential Electors; amending 26 O.S. 2021, Section 10-108, which relates to vacancies; updating statutory language; prescribing oath for Electors filling vacancies; and providing an effective date.

SUBJECT: Presidential Electors

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 26 O.S. 2021, Section 10-108, is amended to read as follows:

In the event any Presidential Elector fails to meet at the Governor's office at the prescribed time or refuses or fails to vote for the persons nominated for the offices of President and Vice President by the political party ~~which~~ that nominated the Presidential Elector, ~~it shall be the duty of~~ the Electors present at the prescribed time and place ~~aforsaid to~~ shall appoint a person to fill such vacancy. The person appointed to fill the vacancy shall subscribe to an oath stating that the appointee will cast a ballot for the persons nominated for the offices of President and Vice President by the appointee's political party. The oath shall be witnessed by the Governor or the Governor's designee and filed with the Secretary of State.

SECTION 2. This act shall become effective November 1, 2026.

Passed the Senate the 24th day of March, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the 28th day of April, 2026.

Presiding Officer of the House
of Representatives

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____